

II. INTRODUCTION

This case arises in the context of the Telluride ski patrol strike occurring from December 27, 2025, through January 7, 2026. In conclusory fashion, Plaintiff’s First Amended Complaint asserts Defendants provoked and prolonged the ski patrol strike. While there are numerous allegations in the First Amended Complaint, Plaintiff seeks relief as to two claims against Defendants: (1) tortious interference with prospective business relations; and (2) civil conspiracy. These claims for relief are not plausibly alleged as to Defendant Julie Meehan Fee (“Ms. Fee”) and should be dismissed with prejudice.

III. STANDARD OF REVIEW

C.R.C.P. 12(b)(5) requires a court to dismiss a complaint that does not state a claim for relief. A court properly grants a C.R.C.P. 12(b)(5) motion where the complaint’s factual allegations, taken as true and viewed in the light most favorable to the plaintiff, do not present plausible grounds for relief. *Begley v. Ireson*, 399 P.3d 777, 779 (Colo. App. 2017); *Warne v. Hall*, 373 P.3d 588, 595 (2016). Facts couched as legal conclusions, that is, “conclusory statements,” are not entitled to the assumption of truth. *Scott v. Scott*, 428 P.3d 626, 632 (Colo. App. 2018); *Warne*, 373 P.3d at 596. Colorado has adopted the “plausibility” pleading standards articulated by the U.S. Supreme Court in *Bell Atlantic Corporation v. Twombly*, 550 U.S. 544 (2007), *Ashcroft v. Iqbal*, 556 U.S. 662 (2009), and their progeny. *Warne*, 373 P.3d at 595.

Under those standards, “a complaint must contain sufficient factual matter, accepted as true, to ‘state a claim for relief that is plausible on its face.’” *Id.* at 589–91. If it fails to do so, it is subject to dismissal under C.R.C.P. 12(b)(5) for failure to state a claim on which relief may be granted. *Id.* “Bare”, “formulaic”, and “conclusory” allegations are insufficient because they are

not entitled to the assumption that they are true. *Twombly*, 550 U.S. at 555, 570 (a complaint requires dismissal where it provides no “more than labels and conclusions, and a formulaic recitation of the elements of a cause of action,” failing to plead “enough facts to state a claim to relief that is plausible on its face”); *Iqbal*, 556 U.S. at 678 (plausibility pleading standards demand “more than an unadorned, the-defendant-unlawfully-harmed-me accusation”); *Warne*, 373 P.3d at 596 (reversing appellate court’s finding that complaint stated actionable claim for intentional interference, where allegations were conclusory and equally consistent with non-tortious conduct). “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Iqbal*, 556 U.S. at 663. If the alleged conduct is equally consistent with non-tortious conduct, it fails to meet the *Twombly/Iqbal/Warne* standard of “plausibly” stating a claim. *Id.*

IV. ARGUMENT

A. Claim 1: Tortious interference with prospective business relations is not plausibly alleged against Ms. Fee and should be dismissed.

The First Amended Complaint asserts conclusory allegations against Ms. Fee which fail to meet required plausibility pleading standards. The complaint must state “enough facts to state a claim to relief that is plausible on its face.” *Twombly*, 550 U.S. at 555, 570. At the pleading stage, it is not the defendant’s or the Court’s responsibility to guess at plaintiff’s claims. *Twombly*, 550 U.S. at 555. In sum, the First Amended Complaint stems from a theory that a collection of Defendants, including Ms. Fee, interfered with Plaintiff’s business relations by provoking and prolonging the Telluride ski patrol strike from December 27, 2025, through January 7, 2026.

Plaintiff offers only the following allegations to support this theory¹:

- Defendants Fee and Prohaska represented that they had the power to end the strike and by implication prolong it. *See* First Amended Complaint (“FAC”), ¶ 29.
- Defendants Fee and Prohaska represented that they had the power to end the strike via an offer to purchase the ski resort submitted to Plaintiff on December 29, 2025. *See* FAC, ¶¶ 19, 20, and 78.
- The offer to purchase stated that Buyer [Defendants Fee and Prohaska] will cause the Towns of Mountain Village and Telluride to take commercially reasonable efforts to broker a cessation to the Ski Patrol strike with Patrol agreeing to the offer made by Seller [Plaintiff] to Patrol. *See* FAC, ¶ 24(a); FAC, Exhibit 1, at p. 12 (Exhibit B to Offer to Purchase).
- With regard to the ski patrol strike, Mr. [Chuck] Horning, the owner of Plaintiff, clarified, ‘[s]o we sign this, and they go back to work.’ Ms. Prohaska replied ‘Yes.’ *See* FAC, ¶¶ 12, 42.
- Thus, Defendant Prohaska clearly stated that she had the power to control the ski patrol strike and that she would exercise this power if [Plaintiff] sold the resort to her proposed group, including Ms. Fee, who was present when these representations were made and signed the associated formal documents. *See* FAC, ¶ 43.
- Defendants deliberately provoked the ski patrol strike to force Mr. Horning to sell Plaintiff. *See* FAC, ¶ 45.
- Ms. Prohaska told Mr. Horning, the owner of [Plaintiff], that the ‘Board’ of the prospective buyer would be able to ‘effectuate some of these goals [make government permitting and other obstacles that [Plaintiff] faced go away] . . . [a]nd getting more air service is one of these goals. Getting more housing is one of these goals, and also ending the strike immediately is one of these goals.’ *See* FAC, ¶ 47.
- Defendant Fee explained that their arrangement would be, ‘Basically, a shortcut of a lot of government permission . . . because government is part of the process.’ *See* FAC, ¶ 49.²

¹ Paragraphs 41 through 52 of Plaintiff’s First Amended Complaint and the transcript contained in Exhibit 2 are subject to Ms. Fee’s contemporaneously filed motion to strike pursuant to C.R.C.P. 12(f). Nonetheless, even if this material remains in the lawsuit, it is insufficient to overcome the plausibility pleading deficiencies as set forth in this instant Motion pursuant to C.R.C.P. 12(b)(5). Ms. Fee addresses these allegations in this Motion without waiving her arguments they should be stricken from the First Amended Complaint.

- Defendant Wisor prepared a nondisclosure agreement to accompany the purchase offer. *See* FAC, ¶ 63.
- Paragraph 54 concedes Plaintiff is unaware as to whether Defendants have sole discretion to prolong the ski patrol strike. *See* FAC, ¶ 54.

To survive dismissal, Plaintiff must allege Ms. Fee committed an “intentional and improper interference preventing formation of a contract.” *Bristol Head Elec. Site Techs., LLC v. Aero Mktg. & Logistics, LLC*, No. 22CA1540, 2024 WL 3791821, at *3 (Colo. App. Feb. 15, 2024). “One may tortiously interfere with a prospective contractual relation by (1) inducing or otherwise causing a third party not to enter into or continue the prospective relation, or (2) preventing the other from acquiring or continuing the prospective relation. Interference with another’s prospective contractual relation is tortious only if there is a reasonable likelihood or reasonable probability that a contract would have resulted.” *Id.* Plaintiff has not alleged the following elements as to Ms. Fee:

1. No improper interference alleged.

There is not a single act by Ms. Fee alleging interference, let alone improper interference with the ski patrol strike to prolong it. There are no plausible allegations supporting the ski patrol strike would have ended earlier than January 7, 2026, but for interference by Ms. Fee. Instead, Plaintiff alleges only that Ms. Fee offered the Town to undertake reasonable efforts to end the strike - an offer which Plaintiff declined and therefore had no entitlement. *See* FAC, ¶ 23 (“Telski

² Ms. Fee recites the allegations in the light most favorable to Plaintiff for purposes of this Motion under the standards of C.R.C.P. 12(b)(5). Nonetheless, the quoted language cited by Plaintiff has no apparent nexus to the ski patrol strike, and instead, pertains to Ms. Fee’s explanation of how a public private partnership model could be applied for purposes of rebuilding one of Plaintiff’s chairlifts. *See* Exhibit 2 of First Amended Complaint, at 36:6-40:10.

did not accept the offer”). There are no allegations Ms. Fee had any authority or ability to end or prolong the strike and no allegations she took any steps to do so. These allegations do not plausibly allege Ms. Fee took any action to prolong the strike.

Plaintiff’s conclusory assertions cannot overcome these pleading deficiencies and must be disregarded. Plaintiff asserts, “Defendants Prohaska and Fee, in association with Paul Wisor, deliberately provoked the ski patrol strike to attempt to force Mr. Horning to sell Telski to a coalition of private actors and government officials,” *see* FAC, ¶ 45, but relies on no factual allegations showing what any of the Defendants, including Ms. Fee specifically, did to provoke the ski patrol strike, when they provoked the ski patrol strike, how they provoked the ski patrol strike, or any other specific non-conclusory information showing Ms. Fee or the other Defendants could have plausibly authorized or directed the strike to occur or continue. Such naked assertions, devoid of further factual enhancement do not suffice for stating actionable claims against Ms. Fee. *Twombly*, 550 U.S. at 557; *Iqbal*, 556 U.S. at 678; *see also, Robbins v. Oklahoma*, 519 F.3d 1242, 1250 (10th Cir. 2008) (affirming dismissal of claims, finding that “[g]iven the complaint’s use of either the collective term ‘Defendants’ or a list of the defendants named individually but with no distinction as to what acts are attributable to whom, it is impossible for any of these individuals to ascertain what particular [] acts they are alleged to have committed”). Plaintiff does not allege Ms. Fee was involved in any way with the ski patrol strike. There are no allegations of specific actions or omissions Ms. Fee committed or failed to commit with respect to the ski patrol strike.

Nor does the First Amended Complaint provide sufficient information to allege interference that is “improper.” Indeed, the determinative factors cannot be assessed given no act or conduct is alleged: (1) the nature of the person’s conduct; (2) the person’s motive; (3) the

interests of the other with which the person's conduct interferes; (4) the interests sought to be advanced by the person; (5) the social interests in protecting the person's freedom of action and others' contractual interests; (6) the proximity or remoteness of the person's conduct to the interference; and (7) the relations between the parties. *W.O. Brisben Companies, Inc. v. Krystkowiak*, 66 P.3d 133, 136 (Colo. App. 2002) (outlining seven factors to determine whether interference is "improper"). Plaintiff's conclusory allegation Defendants generally acted for "personal gain" is insufficient to satisfy the improper interference requirement as to the defendants, including Ms. Fee. *Id.* at 137 ("The motivation of personal gain, including financial gain . . . generally is not enough to satisfy the improper interference requirement."); see FAC, ¶ 11.

2. *No intentional interference alleged.*

There are no allegations supporting Ms. Fee intended to prolong the strike. Plaintiff's allegation Ms. Fee stated she could "make a phone call today to get the union ski patrollers back to work the next day" reflects, at most, a subjective belief by Ms. Fee that she could negotiate an end to the strike. See FAC, ¶ 18. This is consistent with paragraph 24(a) which alleges only "commercially reasonable efforts to broker a cessation to the Ski Patrol strike." Plaintiff's conclusory allegation an ability to end the strike is equivalent to an ability and intent to prolong it is unsupported and must be disregarded. See FAC, ¶ 29; *Twombly*, 550 U.S. at 557; *Iqbal*, 556 U.S. at 678; *Warne*, 373 P.3d at 596-597. To the contrary, paragraphs 18 and 24(a) indicate the strike would have continued absent efforts to negotiate its resolution. Nothing in the First Amended Complaint supports any intent to prolong the strike. Absent factual allegations supporting intent, claim one fails. *Wasalco, Inc. v. El Paso Cnty.*, 689 P.2d 730, 732 (Colo. App. 1984) (granting summary judgment where claim was supported only by "conclusory but factually

unsupported statements” of intentional interference).

3. *Causation is not alleged.*

As no interfering act by Ms. Fee is alleged, Plaintiff has not alleged any such act caused prolonging of the strike. The First Amended Complaint concedes Plaintiff is not aware of whether any of the Defendants, including Ms. Fee, even had the ability to cause the strike to be prolonged. *See* FAC, ¶ 54 (“Even if these public acts do not fall within the sole discretion of the Defendants, ...”); *see MDM Grp. Assocs., Inc. v. CX Reinsurance Co.*, 165 P.3d 882, 885 (Colo. App. 2007) (reversing judgment previously in favor of plaintiff on intentional inference with prospective business relations claim, in part, for a “lack of any causative relationship between the conduct of CX and the asserted damages”). The First Amended Complaint pleads no facts on the part of Ms. Fee that could plausibly give rise to liability as to claim one. As a result, Plaintiff’s claim one against Ms. Fee requires dismissal.

B. Claim 2: Civil conspiracy is not plausibly alleged against Ms. Fee and should be dismissed.

In conclusory fashion, Plaintiff alleges Defendants acted in concert to prepare the offer to purchase for the purpose of forcing Plaintiff to sell its ski resort. [*See* FAC, ¶¶ 89-94]. To survive dismissal of the civil conspiracy claim as to Ms. Fee, Plaintiff must allege “(1) two or more persons []; (2) an object to be accomplished; (3) a meeting of the minds on the object or course of action; (4) one or more unlawful overt acts; and (5) damages as the proximate result thereof.” *Walker v. Van Laningham*, 148 P.3d 391, 396 (Colo. App. 2006). “The court will not infer the agreement necessary to form a conspiracy; evidence of such an agreement must be presented by the plaintiff.” *Nelson v. Elway*, 908 P.2d 102, 106 (Colo. 1995) (citations omitted). “Additionally, the purpose of the conspiracy must involve an unlawful act or unlawful means. A party may not be held liable

for doing in a proper manner that which it had a lawful right to do.” *Id.* Plaintiff has not alleged the following elements:

1. *No allegations supporting an agreement to provoke or prolong the ski patrol strike.*

The First Amended Complaint alleges simply that Defendants coordinated the offer of purchase, which was not unlawful. There are no allegations supporting Ms. Fee engaged in any plan with the other Defendants to provoke or prolong the ski patrol strike. At most, Plaintiff asserts Defendant Prohaska stated she had the power to control the ski patrol strike and would exercise this power if Plaintiff sold the resort to her proposed group, *see* FAC, ¶ 43; yet Plaintiff does not allege what, if anything, Defendant Prohaska did to provoke the ski patrol strike, when Defendant Prohaska provoked the ski patrol strike, how Defendant Prohaska provoked the ski patrol strike, what Defendant Prohaska did to prolong the strike, or any other specific information showing Defendant Prohaska could have plausibly authorized or directed the strike at issue. Bare conclusory assertions such as these must be disregarded. *Twombly*, 550 U.S. at 557; *Iqbal*, 556 U.S. at 678. With no plausibly pleaded alleged unlawful conduct by any of the Defendants, the conspiracy claim necessarily fails. Even so, this claim further fails as to Ms. Fee because Plaintiff fails to assert any meeting of the minds to commit an unlawful act, but instead, alleges only that Ms. Fee “was present when these representations were made.” *See* FAC, ¶ 43. The First Amended Complaint is devoid of any allegations as to how Ms. Fee (or any of the Defendants) agreed to provoke or prolong the ski patrol strike, when, where, in what context, or under what circumstances so as to give Ms. Fee or any of the Defendants fair notice to respond, requiring dismissal of the conspiracy claim. *See Rosenblum v. Budd*, 538 P.3d 354, 367, ¶ 52 (Colo. App. 2023) (“we will not infer a conspiracy absent some proof of an agreement.”). Ms. Fee’s mere presence when

Defendant Prohaska made the statements attributed to her in the First Amended Complaint, without more, does not create a meeting of the minds or any conspiracy to prolong the ski patrol strike involving Ms. Fee. *Nelson*, 908 P.2d at 106.

2. *No unlawful overt act.*

Further, Plaintiff likewise presents no facts that could show an unlawful overt act or means to accomplish the purported objective of provoking or prolonging the ski patrol strike by Ms. Fee. Plaintiff alleges, in reference to the offer to purchase, Ms. Fee made a statement that “their arrangement would be, ‘Basically, a shortcut of a lot of government permission . . . because government is part of the process,” *see* FAC, ¶ 49, but this allegation does not allege any factual underpinning as to how this statement relates in any way to provoking or prolonging the ski patrol strike.³ This alleged nonspecific statement fails to meet plausibility pleading standards of showing an unlawful, overt act on the part of Ms. Fee. *Nelson*, 908 P.2d at 106.

3. *No allegations supporting damages.*

Plaintiff alleges “on information and belief, these acts, taken together represent millions of dollars of economic value to [Plaintiff].” *See* FAC, ¶ 95. This is insufficient to plausibly allege any act by Ms. Fee caused Plaintiff any damages. Such an allegation cannot form the basis of a conspiracy claim against Ms. Fee. *Twombly*, 550 U.S. at 557; *Iqbal*, 556 U.S. at 678; *Warne*, 373 P.3d at 596-597.⁴

³ This statement is actually entirely unrelated to the ski patrol strike. *See* Note 2, *supra*.

⁴ Aside from Plaintiff failure to allege how any act of Ms. Fee caused damages, Exhibit 2 of the First Amended Complaint actually refutes Plaintiff’s broader theory it suffered damages more generally as a result of the ski patrol strike where, in reference to the ski patrol strike, Mr. Horning states: “It affects me emotionally, but not financially.” *See* Exhibit 2 of First Amended Complaint, at 37:9-18. *Fry v. Lee*, 2013 COA 100, ¶28, 408 P.3d 843 (Colo. App. June 20, 2013)

As Plaintiff has not plausibly alleged its second and final claim, the First Amended Complaint against Ms. Fee should be dismissed in its entirety.

C. Incorporation of Arguments by Defendants Wisor and Prohaska

Ms. Fee incorporates by reference any additional arguments and authorities presented by Defendants Wisor and Prohaska in their Motion to Dismiss First Amended Complaint Pursuant to C.R.C.P. 12(b)(5) as fully asserted herein.

D. Ms. Fee is entitled to an award of attorneys' fees and costs.

Should Ms. Fee's Motion to Dismiss be granted, she is entitled to an award of her attorneys' fees and costs and requests the opportunity to submit an affidavit and accompanying documentation in support of the same. *Smith v. Town of Snowmass Vill.*, 919 P.2d 868, 872 (Colo. App. 1996) (granting attorney's fees to Town where tort action was dismissed pursuant to C.R.C.P. 12(b)); *Duke v. Gunnison Cnty. Sheriff's Off.*, 456 P.3d 38, ¶ 43 (Colo App. 2019) ("Under this section, an award of attorney fees is mandatory when a trial court dismisses an action under C.R.C.P. 12(b)").

WHEREFORE, for the reasons stated herein, Ms. Fee respectfully requests the Court order as follows:

- A. Dismiss Plaintiff's claims against her with prejudice;
- B. Enter judgment against Plaintiff and in favor of Defendant Fee;
- C. Grant Defendant Fee her reasonable attorneys' fees and costs; and

("When considering a motion to dismiss for failure to state a claim, we may consider only the facts alleged in the pleadings, **documents attached as exhibits**, or incorporated by reference, and matters proper for judicial notice") (internal quotations omitted) (emphasis added). Again, Ms. Fee makes this point without waiving her argument the transcript should be stricken and not considered by this Court.

D. Grant Defendant Fee such other and further relief as the Court deems just and proper.

Respectfully submitted,

Hall & Evans, L.L.C.

/s/ Kendra K. Smith
Kendra K. Smith, #51633
Andrew D. Ringel, #24762

Counsel for Defendant Julie Meehan Fee

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 5th day of June, 2026, a true and correct copy of the foregoing Motion to Dismiss First Amended Complaint Pursuant to C.R.C.P. 12b(5) from Defendant Julie Meehan Fee was electronically filed with the Court and served upon all counsel of record via Colorado Courts E-Filing system.

Troy A. Eid, Esq.
eidt@gtlaw.com

John A. Wharton, Esq.
john.wharton@gtlaw.com

Harriet M. Retford, Esq.
retfordh@gtlaw.com

Eric M. Ziporin, Esq.
eziporin@sgrllc.com

Tiffany E. Toomey, Esq.
ttoomey@sgrllc.com

/s/ Rebecca Walker
Legal Assistant of
Hall & Evans, L.L.C.